



CHAPTER xxx

An Act to provide for the incorporation of the Royal Holloway College the redefinition of the objects general character powers and methods of government of the College and the reconstitution of its governing body and for other purposes. [30th July 1949.]

WHEREAS—

(1) The Royal Holloway College Egham (hereinafter referred to as “ the College ”) was founded and endowed by one Thomas Holloway as a college for women and was opened by Queen Victoria in the year one thousand eight hundred and eighty-six and has been since the year one thousand nine hundred a school of the University of London in the faculties of arts and science :

(2) Under and in pursuance of deeds dated respectively the eighth day of May one thousand eight hundred and seventy-six the fifth day of August one thousand eight hundred and eighty-one and the twenty-fifth day of August one thousand eight hundred and eighty-three the said Thomas Holloway endowed the College with land buildings pictures furniture stocks shares and debentures by vesting the same in trustees for the benefit of the College :

(3) By a deed of foundation dated the eleventh day of October one thousand eight hundred and eighty-three (as altered by orders of the Charity Commissioners dated respectively the nineteenth day of November one thousand eight hundred and eighty-six the fifteenth day of March one thousand eight hundred and eighty-seven and the second day of November one thousand eight hundred and ninety-four and by deeds dated respectively the twenty-sixth day of April one thousand nine hundred and six the fourteenth day of March one thousand nine hundred and

twelve the fourteenth day of November one thousand nine hundred and twenty-five the twenty-sixth day of January one thousand nine hundred and thirty-nine the twenty-seventh day of June one thousand nine hundred and forty and the thirtieth day of March one thousand nine hundred and forty-six) the said Thomas Holloway in pursuance of powers reserved to him under the deeds mentioned in recital (2) hereof declared the rules and regulations which were to apply to the College:

(4) By a judgment of Mr. Justice Swinfen Eady dated the sixth day of November one thousand nine hundred and nine on an originating summons in the Chancery Division of the High Court of Justice under the title "In re Holloway's Trusts *Greenwell v. Ryan*" it was held that the first twenty-one clauses of the said rules and regulations which are grouped together under the heading "Nature and principles of the College" comprise the principles referred to as "fundamental principles" in clause 51 of the said rules and regulations and as such are excepted from the power under that clause to alter the rules and regulations and such fundamental principles are unalterable except by Act of Parliament:

(5) The said fundamental principles include or imply principles to the following effect:—

That the College is founded to afford the best education suitable for women of the middle and upper middle classes and the curriculum is to be based on what is most suitable for the education of women ;

That male students cannot be admitted to membership of the College or to tutorial facilities conducted at the College by members of the College staff ;

That each student shall have for her separate use two rooms and no more which shall not be shared with any other student ;

That the lady principal and every resident female professor and teacher shall be an unmarried woman or a widow without issue and any person holding any such office who shall marry shall ipso facto vacate the office held by her and lose all right to the salary and emoluments thereof :

(6) The College is an unincorporated charity subject to the trusts and rules and regulations contained in the several deeds hereinbefore mentioned :

(7) Under the said rules and regulations the management and government of the College is vested in nineteen governors (hereinafter called "the governors") appointed or entitled to office as therein provided :

(8) The whole of the existing land of the College is held and used for educational and charitable purposes of or connected with the work of the College and is subject to the trusts declared in the said deed dated the eighth day of May one thousand eight hundred and seventy-six which take effect by reference to the said rules and regulations and no part of such land could be granted to another authority for use as a site for a college hostel or hall of residence for male students:

(9) The stocks shares and debentures referred to in recital (2) hereof and the moneys for the time being representing the same (hereinafter referred to as "the endowment fund") are held upon trust for application to the purposes (or any of them) defined in the said deed dated the twenty-fifth day of August one thousand eight hundred and eighty-three as follows:—

"The establishment of scholarships exhibitions and prizes or otherwise in encouraging proficiency in the several branches of learning cultivated or taught at the said College the payment of the salaries of and allowances for maintenance to professors and others employed as teachers in the said College the defraying the domestic and other expense incurred in carrying on the business of the said College or otherwise for the general purposes thereof."

Unless and until so applied the endowment fund may under the provisions of the said deed be invested only in securities of the same or like nature as the said stocks shares and debentures (which are described in a schedule to the said deed) or in real securities or such other securities as are usually allowed by the High Court of Justice in similar cases:

(10) It is expedient accordingly that the provisions in this Act contained with respect to the matters aforesaid and otherwise with respect to the College should be enacted:

(11) The purposes aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited as the Royal Holloway College Act Short title. 1949.

2. In this Act unless the context otherwise requires—

Interpretation.

"The College" means the Royal Holloway College incorporated by this Act;

"The university" means the University of London;

“ The council ” means the council of the College constituted and appointed as provided by this Act ;

“ The statutes ” means the statutes of the College for the time being in force by virtue of the provisions of this Act ;

“ The regulations ” means the regulations of the College for the time being in force by virtue of the provisions of this Act ;

“ The appointed day ” means the first day of October one thousand nine hundred and forty-nine ;

“ The existing College ” means the Royal Holloway College at Englefield Green Surrey and the lands buildings and premises connected therewith ;

“ The principal ” means the lady principal for the time being of the College ;

“ The secretary ” means the secretary for the time being of the College ;

“ The endowment fund ” means the stocks shares and debentures and the moneys for the time being representing the same held upon trust for application to the purposes (or any of them) defined in the deed dated the twenty-fifth day of August one thousand eight hundred and eighty-three and made between Thomas Holloway of the one part and George Martin and David Chadwick of the other part for the endowment of the existing College as the same exist for the time being whether before or after the transfer thereof to the College by virtue of this Act ;

“ Land ” includes any interest in land and any easement or right in to or over land ;

“ Special resolution ” means a resolution passed at a meeting of the council of which not less than fourteen days’ notice has been given by post specifying that such resolution will be proposed thereat.

Incorporation
of College.

3. As on and from the appointed day the persons who are for the time being the members of the council shall be and become one body corporate by the name of “ the Royal Holloway College ” for such objects and purposes as in this Act appear and by that name shall have perpetual succession and a common seal and may by and in the same name sue and be sued and do all things incidental or appertaining to a body corporate.

Principal
objects powers
and rules of
College.

4.—(1) (a) The College may carry on the existing College and any extensions thereof or additions thereto made in accordance with this Act and the statutes and the regulations and any other

premises acquired or provided in connection therewith in accordance with this Act and the statutes and the regulations and may conduct the same as a school of the university in accordance with the statutes of the university with such academic and other activities as are appropriate to such a school and to its status for the time being in the university and with such regular curriculum as shall be in accordance with the regulations for the time being of the university :

Provided that the council shall be at liberty at any time to provide additional instruction in any subjects or branches of knowledge outside that curriculum :

And provided also that the premises of the College shall be used solely as a residential college for women except that—

- (i) the council may if and whenever they think it desirable to do so admit non-residential women students on such terms as the council may think fit ; and
- (ii) the council may admit men as non-residential post-graduate students if they think fit.

(b) Notwithstanding anything contained in paragraph (a) of this subsection—

- (i) a student's residence in the premises of the College shall not extend beyond a period of four years unless an extension of such period shall be specially sanctioned by the council ;
- (ii) no member of the council and no student professor teacher officer or servant of the College shall have applied to or imposed upon her or him any qualification or test of religion race or colour ;
- (iii) the council shall appoint and remove all members of the staff of the College other than appointed teachers of the university whose appointment shall nevertheless be subject to the confirmation of the council The council shall consider a report from the academic board constituted in manner provided by the statutes before appointing or removing any member of the teaching staff and from the head of the department concerned in the case of other members of departmental staffs ;
- (iv) marriage shall not be a bar to the employment of any person in the service of the College.

(2) The College may provide acquire furnish equip maintain carry on and manage collegiate premises and educational and research institutions and any facilities auxiliary thereto and sanatoria convalescent homes hostels athletic grounds club-houses and other premises and facilities for residential curative recreational cultural social and other purposes in connection therewith

and accommodation for temporary visits of parents guardians and relatives of students.

(3) No church or chapel or other religious institution shall at any time be built or maintained on any land of the College except the existing College chapel or any enlargement extension or reconstruction thereof whether upon its present or some other site.

(4) Subject to the statutes and regulations of the university where applicable the College may employ and remunerate such professors teachers officers and servants as the council may from time to time decide and on such terms and conditions as the council may think fit:

Provided that all resident teachers of the College shall be women.

(5) Subject to any exercise by the council of the power of leasing under section 9 (Power to sell mortgage &c. lands &c.) of this Act the principal and any professor teacher officer or servant to whom a residence shall be assigned on the College premises shall dwell in such residence and hold the same solely as licensee of the council and she or he and any other professor teacher officer or servant of the College shall if removed from office deliver up possession of such residence and any other property of the College in her or his possession to the council Neither the principal nor any professor teacher or officer without the consent of the council shall allow any other person excepting servants to occupy her or his official residence or any part thereof.

(6) The College may subject to the approval of the university enter into any agreement or arrangement on such terms and conditions as the council may think fit with any other college or any national or local authority school institution association or other body (whether incorporated or not) for co-operating with or assisting or being assisted by such body in any manner and for any purpose which is consonant with the objects of the College and approved by the council.

(7) The College may subject to the consent of the court of the university where this is required by the statutes of the university—

(a) accept and receive legacies bequests devises gifts grants annuities collections allowances and other benefits and undertake and perform any services or conditions attached to the receipt thereof;

(b) publish literature advertise hold bazaars entertainments and performances and make appeals and conduct such other lawful activities as in the opinion of the council are desirable with a view to raising funds for the

College or making known its existence purposes or work or otherwise assisting the carrying on or extension of the College ;

- (c) appoint any person or persons (whether incorporated or not) to accept and hold in trust for the College any property belonging to the College or in which it is interested and to execute and do all such deeds acts and things as may be requisite in relation to any such trust and provide for the remuneration of any such trustee or trustees ;
- (d) compromise any debts owing to or claims made by or against the College ;
- (e) promote or oppose any Bill Order scheme or application in Parliament or before any government department or authority or tribunal and prosecute or defend any legal proceedings.

(8) The College may do all such other things as are incidental or as the council may think conducive to the attainment of the objects in this section mentioned or any of them.

5.—(1) Subject to the provisions of this Act and the statutes and to observance (except as to any matters in this Act or the statutes expressly provided for) of the provisions of the Acts and statutes of the university and any regulations made thereunder the government of the College shall be vested in a council which shall be constituted in manner provided by the statutes and subject to the provisions of this Act and the statutes the council may exercise on behalf of the College the powers vested by this Act and the statutes in the College and shall have the management control and administration of all property and income of the College and the government of the affairs of the College and of the procedure of the council and may from time to time make regulations with respect to all or any of the said matters in accordance with the provisions of subsection (5) of this section.

Government
and adminis-
tration of
College by
council.

(2) The statutes set forth in the First Schedule to this Act shall be the first statutes of the College but the same and any other statutes of the College for the time being in force may from time to time be altered added to or revoked by further statutes which may be made by the council in accordance with the provisions of subsection (4) of this section :

The statutes set forth in the said schedule except as so altered added to or revoked shall have effect as if they were part of this Act.

(3) The first representative and co-opted members of the council shall be the persons whose names are set forth in the Second Schedule to this Act or such of them as shall be living at the appointed day.

(4) (a) The council before making a statute shall take such steps as are in their opinion best adapted for facilitating the making of representations to them with respect to the proposed statute by or on behalf of any bodies or persons appearing to them to be directly affected by the proposed statute and shall consider any representations made to them by or on behalf of any such bodies or persons. All statutes shall be submitted to and approved by the university.

(b) No statute or part of a statute made by the council under this Act shall have effect unless confirmed by order of the Privy Council but every statute or part of a statute so confirmed shall subject to the provisions of this Act have effect notwithstanding anything in any deed or other instrument whatsoever.

(5) The regulations set forth in the Third Schedule to this Act shall be the first regulations of the College but the same and any other regulations of the College for the time being in force may from time to time be altered added to or revoked by further regulations which the council may make and which shall have full force and effect. The regulations set forth in the said schedule except as so altered added to or revoked shall have effect as if they were part of this Act.

(6) A printed copy of the statutes or of the regulations purporting to be certified by the secretary to be the statutes or regulations (as the case may be) of the College for the time being in force shall be admissible in all proceedings as prima facie evidence thereof without further proof.

Powers of
council.

6.—(1) (a) The council may by special resolution passed by a majority of not less than three-fourths of the whole number of the members of the council establish a fund or funds for the provision of pensions and retiring allowances and other allowances for all or any of the principal and the professors teachers officers and servants of the College who shall become members of any such fund and shall contribute to the fund in accordance with the rules thereof. Membership of any such fund may be made either voluntary or compulsory and the council may or may not be required to give guarantees to the fund or make contributions to the fund out of the endowment fund or out of other capital moneys or income of the College. The council may carry on and manage any such fund or funds so established.

(b) The council if in their absolute discretion they think fit may by special resolution passed by such a majority as aforesaid grant to any retiring principal professor teacher officer or servant of the College a gratuity or pension of such amount and on such terms and conditions as the council may think fit to prescribe and may grant a gratuity bonus honorarium or allowance to any

person who may have undertaken or performed without consideration in money or money's worth any work or service of benefit to the College.

(2) The council with the sanction of a resolution passed by a majority of the whole number of the members of the council may pay a donation and may agree to pay and thereafter may pay and continue to pay a subscription out of the income of the College to any institution society fund or object to which it is in the opinion of such majority appropriate for the College to give or subscribe.

7.—(1) All the real and personal property (including the endowment fund and all things in action and all rights and privileges) which immediately before the appointed day belonged to or was held by or in trust for or in connection with the existing College or any charity or object subsidiary or ancillary to the existing College shall by virtue of this Act and without any conveyance transfer or other instrument be transferred to and vested in the College. Transfer of property to College as incorporated.

(2) The production of a copy of this Act together with a statutory declaration by the secretary of the existing College and by the person or corporation in whose name any registered land or any stock transferred by virtue of this Act is standing describing for the purpose of identification the land or stock so transferred shall be sufficient authority to the Chief Land Registrar of His Majesty's Land Registry to enter the name of the College as proprietor of the said land or to any company in whose books any such stock is standing to transfer the stock into the name of the College and to pay any dividends interest or bonuses thereon to the College.

(3) In this section—

“company” includes the Bank of England and any corporation or person keeping books in which any stock is registered or inscribed ;

“stock” includes any share fund annuity or other security or interest.

8. The College may hold without licence in mortmain all the land which has been acquired before the appointed day by or on behalf of or in trust for the existing College whether by gift purchase or otherwise and has not before that day been disposed of by them and the College may purchase take on lease accept a gift of or otherwise acquire and may hold without licence in mortmain any land which in the opinion of the council it is desirable that the College should acquire or hold: Power to hold and acquire lands.

Provided that the College shall not purchase land unless the land is required for actual occupation immediate or future for the purposes of the College and not as an investment.

Power to sell
mortgage &c.
lands &c.

9.—(1) The College may from time to time sell mortgage charge let surrender exchange or otherwise dispose of any land or any personal estate or property (including moneys secured on mortgage of or charged upon any land) by this Act vested in the College or which shall hereafter be vested in or acquired by the College or any part thereof or any easements rights or privileges to be exercised or enjoyed in over upon or under the same or any part thereof and may do and execute all such acts deeds matters and things as may be necessary for effectuating and completing any such sale mortgage charge letting surrender exchange or disposition.

(2) The powers conferred by this section may be exercised without any order of any court or judge and without obtaining the approval of the Charity Commissioners or the Minister of Education.

Application
of property
funds and
income of
College.

10.—(1) All property and funds of the existing College which immediately before the appointed day shall be held for the general purposes of the existing College (including the endowment fund) may be applied by the College in furtherance of any of the objects of the College.

(2) In the case of property or funds which immediately before the appointed day shall be held in trust to apply the income thereof for the general purposes of the existing College the income thereof arising before the appointed day may be applied by the College in furtherance of any of the objects of the College.

(3) Any property or funds and any income from property or funds which immediately before the appointed day shall be held on behalf of the existing College for any special purpose shall continue after the appointed day to be held by the College for such special purpose.

(4) All income of the College arising on or after the appointed day from the endowment fund or from rentals of leased premises or interest or dividends on stocks or shares or otherwise from property or investments of the College or from benefactions or donations not allocated by the donors or otherwise made applicable only to special purposes shall be carried to the credit of the endowment fund and may be applied by the College in furtherance of any of the objects of the College.

Bequests &c.
to existing
College.

11. Any devise bequest or gift contained in the will or in a codicil to the will of any person having died before or dying on or after the appointed day or in a deed whether executed before on or after the appointed day in favour of or directed to be administered by or in connection with the existing College or a charity or object subsidiary or ancillary to the existing College shall not fail by reason of anything in this Act but shall

as from the appointed day take effect in favour of or be administered by or in connection with the College or a corresponding charity or object subsidiary or ancillary to the College.

12. In any case where by the will or a codicil to the will of any person having died before or dying on or after the appointed day or by any deed whether executed before on or after the appointed day any bequest or gift has been or shall be made in favour of or directed to be administered by or in connection with the existing College or a charity or object subsidiary or ancillary to the existing College and the legal personal representatives of such person or any trustees in whom such bequest or gift is vested are unable for any reason to obtain the receipt for such bequest or gift of any person whose receipt is an effectual discharge for the same the receipt of the secretary shall be an effectual discharge to such legal personal representatives or trustees as aforesaid (as the case may be) and shall exonerate them from being concerned to see to the application of such bequest or gift and from being answerable for the mis-application or non-application thereof.

Receipts for
bequests &c.
to existing
College.

13. At the appointed day all debts liabilities contracts and obligations properly incurred or entered into on behalf of the existing College shall by virtue of this Act be transferred and attached to the College and shall thereafter be discharged and satisfied by the College. The College shall indemnify the governors trustees officers professors teachers and servants of the existing College and their respective representatives from all such debts and obligations and from all expenses and costs in respect thereof.

Transfer of
liabilities.

14. Subject to the provisions of this Act and the statutes and the regulations the principal and all persons who immediately before the appointed day are professors teachers officers or servants of the existing College shall as from the appointed day continue to hold under the College the same offices and employments and shall hold them on the same terms and conditions as applied to their respective offices and employments immediately before the appointed day.

Continuance
of professors
teachers
officers and
servants of
existing
College.

15. The accounts of the College shall be audited by an accountant or a firm of accountants:

Auditing of
accounts.

Provided that no person or firm shall be qualified to audit the accounts unless he is a member or in the case of a firm unless all the partners are members of one or more of the following bodies:—

The Institute of Chartered Accountants in England and Wales;

The Society of Incorporated Accountants and Auditors;

The Society of Accountants in Edinburgh;

The Institute of Accountants and Actuaries in Glasgow ;
The Society of Accountants in Aberdeen ;
The Association of Certified and Corporate Accountants ;
The Institute of Chartered Accountants in Ireland ;

Any other body of accountants established in the United Kingdom and for the time being recognised by the Board of Trade for the purposes of the provisions of section 161 of the Companies Act 1948 relating to the qualification for appointment as auditor of a company other than an exempt private company.

11 & 12 Geo. 6.
c. 38.

Dissolution
of existing
College.

16. As from the appointed day without prejudice to anything previously done or suffered the organisation of the existing College is hereby dissolved the powers of its governors and officers shall terminate the trustees for the time being of the College are hereby discharged and the following deeds orders rules and regulations shall cease to operate (that is to say):—

- (a) the deeds dated respectively the eighth day of May one thousand eight hundred and seventy-six and the fifth day of August one thousand eight hundred and eighty-one and made between Thomas Holloway of the one part and Henry Driver George Martin and David Chadwick of the other part and the deed dated the twenty-fifth day of August one thousand eight hundred and eighty-three and made between Thomas Holloway of the one part and George Martin and David Chadwick of the other part for the endowment of the existing College ;
- (b) the deed dated the eleventh day of October one thousand eight hundred and eighty-three and made by Thomas Holloway in pursuance of powers reserved to him under the deeds referred to in the last preceding paragraph of this section for the declaration of the rules and regulations which were to apply to the existing College ;
- (c) the rules and regulations declared by the deed referred to in the last preceding paragraph of this section ;
- (d) the orders made by the Charity Commissioners dated respectively the nineteenth day of November one thousand eight hundred and eighty-six the fifteenth day of March one thousand eight hundred and eighty-seven and the second day of November one thousand eight hundred and ninety-four and the deeds of the governors of the existing College dated respectively the twenty-sixth day of April one thousand nine hundred and six the fourteenth day of March one thousand nine hundred

and twelve the fourteenth day of November one thousand nine hundred and twenty-five the twenty-sixth day of January one thousand nine hundred and thirty-nine the twenty-seventh day of June one thousand nine hundred and forty and the thirtieth day of March one thousand nine hundred and forty-six for the alteration of the rules and regulations referred to in the last preceding paragraph of this section.

17. It shall not be lawful to exercise the powers of borrowing conferred by this Act otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946. Saving for powers of Treasury.
9 & 10 Geo. 6.
c. 58.

18. All costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the College out of the funds of the College. Costs of Act.

The SCHEDULES referred to in the foregoing Act

THE FIRST SCHEDULE

THE FIRST STATUTES OF THE COLLEGE

CONSTITUTION OF THE COUNCIL

1. The council shall consist of twenty-two members being—
- (a) The chairman for the time being of the council appointed as in these statutes provided ;
 - (b) The principal ;
 - (c) Fourteen representative members who except in the case of the first representative members shall be appointed as follows:—

One by the Lord President of the Privy Council ;

Two by the Senate of the University of London ;

One by the Court of aldermen of the City of London ;

Two by the Minister of Education ;

One by the Hebdomadal Council of the University of Oxford ;

One by the Council of the Senate of the University of Cambridge ;

One by the mayor aldermen and burgesses of the borough of New Windsor ;

Four by the academic board appointed in pursuance of these statutes ; and

One former student of the College selected by the association of former students of the College approved for this purpose by the council.

- (d) Six co-opted members who except in the case of the first co-opted members shall be co-opted by the council.

2. The first chairman of the council shall be Her Royal Highness the Princess Alice Countess of Athlone if she shall be living at the appointed day She shall hold office for five years therefrom and shall be eligible for re-appointment but she may at any time retire.

Each subsequent chairman of the council shall be appointed by special resolution passed by a majority of the other members of the council and shall hold office for five years but shall be eligible for re-appointment and may at any time retire.

3. The first principal of the College shall be Miss Edith Clara Batho M.A. D.Lit. if she shall be living at the appointed day Each of her successors shall be a woman and shall be appointed by special resolution passed by a majority of the other members of the council and shall hold office according to the terms of such appointment.

4. The first representative and co-opted members of the council shall be the persons whose names are set forth in the Second Schedule to this Act or such of them as shall be living at the appointed day

and they shall respectively hold office from the appointed day until the dates set opposite to their respective names in the third column of the same schedule and shall be deemed to have been appointed by the persons or bodies mentioned in the second column of the said schedule opposite to their respective names and shall be eligible for re-appointment.

1ST SCH.
—cont.

5.—(1) All representative and co-opted members of the council (except the members appointed by the academic board) appointed after the appointed day shall hold office for five years from the date of their respective appointments and shall then retire but be eligible for re-appointment.

(2) All representative members of the council appointed by the academic board after the appointed day shall hold office for one year from the date of their respective appointments and shall then retire but be eligible for re-appointment.

(3) Any member of the council may at any time by notice in writing to the secretary retire from office.

(4) Every casual vacancy in the council shall be filled by the appointment of a new member by the person or body by which the member causing the vacancy was appointed. A person so appointed to fill a casual vacancy shall hold office as if his appointment were a regular appointment under paragraph (1) or paragraph (2) of this statute as the case may be.

6. Of the four representative members of the council to be appointed by the academic board two shall be persons who are professors or heads of academic departments of the College and one shall be a person who is not a professor or head of an academic department of the College.

7. Members of the council other than the principal may be either men or women and marriage shall not be a bar to membership of the council.

8. A vice-chairman of the council may be appointed from among the members thereof by a special resolution passed by a majority of the other members of the council. He or she shall hold office for such period as the council may appoint.

COMMITTEES

9. The council may at any time appoint a committee consisting either wholly of members of the council or partly of members of the council and partly of other persons to inquire into any matter specified by the council and to report to the council or to take action in respect of any matter within the powers of the council if authorised to do so by the council.

10. The council shall at all times after the appointed day keep appointed an investment committee to consist of the chairman for the time being of the council and the vice-chairman (if any) for the time being of the council and three other members of the council.

1ST SCH.
—cont.

MEETINGS OF THE COUNCIL

11. The council shall hold their ordinary meetings at such times and places as they may from time to time decide.

12. The chairman of the council may at any time and shall at the request of any four members of the council summon a special meeting of the council for any cause that seems to him or to them (as the case may be) sufficient.

13. Seven members personally present shall constitute a quorum for a meeting of the council.

14. At any meeting of the council the chairman of the council if present shall preside. In the absence of the chairman from any meeting the vice-chairman (if any) shall preside. In the absence of both chairman and vice-chairman from any meeting the members of the council present may by resolution passed by a majority of those voting appoint a chairman of the meeting.

15. Except as otherwise provided by this Act or the statutes the council shall act by a resolution passed by a majority of the members for the time being of the council voting on the resolution at a meeting of the council. In case of an equality of votes for and against any resolution the chairman of the meeting shall have a second or casting vote.

MINUTES AND RESOLUTIONS

16. The council shall cause minutes to be made of all resolutions and proceedings of meetings of the council and any committees appointed under this Act or the statutes. Any such minutes if purporting to be signed by the chairman of the meeting to which they relate or by the chairman of the next succeeding meeting of the council or committee (as the case may be) shall be received as prima facie evidence of the facts therein stated.

17. A resolution in writing signed by all the members of the council or of any committee appointed under this Act or the statutes shall be as valid as if passed at a meeting of the council or committee (as the case may be) duly convened and constituted. Every such resolution shall be entered in the appropriate minute book of the College.

SECRETARY

18. The council shall at all times after the appointed day keep appointed a secretary of the College. The person who is secretary to the governors of the existing College immediately before the appointed day shall as from that day be the first secretary of the College and shall hold that office on the same terms and conditions as applied to her holding of the office of secretary to the governors of the existing College.

ESTIMATES AND ACCOUNTS

19. The council shall prepare before the commencement of each financial year of the College an estimate of income and expenditure for such year and shall cause true accounts of all income receipts expenditure and payments and all assets and liabilities of the College to be kept at all times and a proper annual statement of accounts in respect of the College to be prepared.

INVESTMENT

1ST SCH.
—cont.

20. Any moneys for the time being in the hands of the College and available for investment may be invested by the College in any of the following modes or objects of investment:—

- (a) in any manner for the time being prescribed by statute for the investment of trust funds ;
- (b) in any investment or security which formed part of the endowment fund of the existing College as that fund existed at thirty-first July nineteen hundred and forty-eight ;
- (c) in the public stocks or funds or government securities of any part of His Majesty's dominions or of the territories under His protection or of the United States of America ;
- (d) with the approval of the investment committee appointed in pursuance of statute No. 10 of these statutes in any of the following investments:—

(i) the deposit receipts bonds debentures debenture stocks mortgages or securities of any corporation company or body whether municipal railway public utility commercial industrial investment trust mortgage insurance banking or of any other class registered or incorporated in the United Kingdom of Great Britain and Northern Ireland or any part of His Majesty's dominions or of the territories under His protection or the United States of America ;

(ii) the guaranteed lien preference or preferred or ordinary or deferred or common stocks or shares of any such corporation company or body or any securities whatsoever issued or guaranteed by any such corporation company or body and in the case of banks and insurance companies whether or not there is liability for calls or other payments:

Provided always that (notwithstanding anything contained in the Mortmain and Charitable Uses Act 1891) any investment security or property which is vested or to be vested in the College in pursuance of this Act or which may hereafter be assured given bequeathed granted assigned or transferred to or take effect in favour of the College (otherwise than by purchase) may be retained and held by the College notwithstanding that such investment security or property may not be such an investment as aforesaid.

ACADEMIC BOARD

21.—(1) For the purposes of the work of the College there shall be established and kept at all times in being an academic board which shall be composed of—

- (a) The principal who shall be the chairman of the board ;
- (b) The professors of the university at the College ;
- (c) Such other persons as are for the time being the heads of the academic departments of the College ; and

1ST SCH.
—cont.

(d) Such other members (if any) of the academic staff of the College as may for the time being be prescribed by the regulations.

(2) It shall be the duty of the academic board to concern itself with all the academic work of the College and to deal with such business as the council may either generally or specially by resolution assign to it.

(3) The functions of the academic board shall be—

(a) to determine the courses of study at the College ;

(b) to consider and make recommendations in regard to the appointment and removal of teachers in the College ;

(c) to elect from amongst themselves four members of the council in accordance with these statutes ;

(d) to consider and report upon all academic matters and questions of educational policy including the following (that is to say):—

(i) applications through the council to the university for appointments of professors and readers in the College ;

(ii) applications through the council to the university for the recognition of teachers in the College ;

(iii) matters concerning co-operation between the College and other similar bodies ; and

(iv) any other matters which may be referred to them by the council.

(4) Subject to the provisions of this statute and the regulations and any directions of the council the academic board may regulate its own procedure and the conduct of its business and it may if it thinks fit for that purpose with the approval of the council make standing orders.

THE SECOND SCHEDULE

THE FIRST REPRESENTATIVE AND CO-OPTED MEMBERS
OF THE COUNCIL

(1) Name	(2) Appointing person or body	(3) Date for retirement
<i>Representative Members</i>		
The Rev. John Seldon Whale M.A. D.D.	Lord President of the Privy Council	21st April 1955
Sir Edward Salisbury C.B.E. D.Sc. F.R.S. F.L.S.	Senate of the Univer- sity of London	30th September 1953
Another representative member to be appointed	Senate of the Univer- sity of London	30th September 1954
Denis Henry Truscott	Court of Aldermen of the City of London	11th November 1954
Maurice Leonard Jacks M.A.	Minister of Education	20th July 1951
Professor A. Victor Murray M.A. B.D.	Minister of Education	18th February 1955
Frederick Mason Brewer M.B.E. B.Sc. M.A. Ph.D.	Hebdomadal Council of the University of Oxford	10th November 1954
Another representative member to be appointed	Council of the Senate of the University of Cambridge	1st November 1950
John George Holbrook Vidler J.P.	Mayor aldermen and burgesses of borough of New Windsor	8th January 1950
Another representative member to be appointed	The academic board	30th September 1950
Professor George Hugh Percival Phair Treden- nick M.A.	The academic board	30th September 1950
Another representative member to be appointed	The academic board	30th September 1950
Another representative member to be appointed	The academic board	30th September 1950
Miss Kitty Anderson B.A. Ph.D.	Association of former students	30th September 1953
<i>Co-opted Members</i>		
Sir John Cameron Bart. M.A. LL.B.	The council	30th September 1954
Miss Lucy Frances Nettle- fold LL.B.	The council	30th September 1954
Evelyn Lloyd Tanner M.A. F.C.A. A.I.A.	The council	30th September 1954
The Countess of Lucan	The council	25th January 1954
The Rev. Canon Adam Fox M.A. D.D.	The council	29th March 1954
Geoffrey Simpson Field O.B.E. T.D.	The council	30th September 1954

THE THIRD SCHEDULE

THE FIRST REGULATIONS OF THE COLLEGE

DISCIPLINE AND ADMINISTRATION

Discipline over
students.

1. The principal shall have under her control generally the whole internal management and discipline of the College as an institution subject to the approval of the council and shall have authority over all students in all places and at all times during the academical terms and shall have power to dismiss or to suspend any student. In all cases where a student is suspended for more than one term or is dismissed such student shall have a right of appeal to the council.

Power to
allot rooms.

2. The principal shall have power to allot rooms in the College to students teachers officers and servants.

Power to
suspend
teachers &c.
in cases of
emergency.

3. The principal having the concurrence of one or more members of the council may in cases of emergency suspend any teacher officer or servant of the College other than an appointed teacher of the university and in that event she shall report thereon to the next meeting of the council who shall hear and decide the case.

Vice-principal
and dean.

4. The principal shall be assisted in her office by a vice-principal and a dean to be appointed by the principal with the approval of the council upon such terms as the council shall determine.

Provision in
case of absence
of principal.

5. In the absence of the principal through illness or other cause the powers and duties of the principal shall be possessed and performed by such person or persons as the council may from time to time appoint for the purpose.

REGISTERS AND REPORTS

Register of
students.

6. A register shall be kept by the council with the name age home address nationality and place of birth of each student the name and address of the school in which she or he was prepared her or his course of education in the College and the dates of her or his entering and leaving the College.

Reports at
end of term.

7. The principal shall make to the council full reports at the expiration of each term on the progress and position of the College and the health and work of the students. Any other persons in the service of the College from whom the council may require reports shall give to the council specific accounts of their stewardship at any time.

Annual report
of council.

8. The council shall once in every year prepare and publish or distribute in such manner and to such extent as they may think fit a report containing a review of the work progress and business of the College the number of students results of examinations and award of scholarships prizes and certificates and a general review of the past and then present state of the College and suggestions for its future work and management.

ACADEMIC BOARD

3RD SCH.

—cont.

Academic
board.

9.—(1) In pursuance of sub-paragraph (d) of paragraph (1) of statute No. 21 the following persons (in addition to the persons mentioned in sub-paragraphs (a) (b) and (c) of that paragraph) shall be members of the academic board:—

The vice-principal ;

Six other teachers elected at a meeting of those members of the staff who are not professors or heads of departments to hold office for two years.

(2) The principal shall be ex-officio chairman of the board. In the absence of the principal the members present at any meeting of the board shall choose a chairman of the meeting. The principal shall be a member of every committee of the board.

(3) When the appointment of a professor or reader is being considered the academic board shall nominate two of the College representatives who are to sit on the board of advisors set up by the university.

(4) When an appointment of any member of the teaching staff other than an appointed teacher of the university is to be made the academic board shall nominate members to serve on the selection committee as follows:—

(i) For appointment of heads of departments not less than two members ;

(ii) For appointment of members of the teaching staff other than heads of departments not less than two members including the head of the relevant department.

(5) It shall be competent to any two or three or more members of the board to present if they shall so desire a signed minority report or representation on any subject upon which the academic board make a representation. It shall pass in the same way as the majority recommendation to the council.

(6) The academic board shall meet at least once a term. Eight shall form a quorum.

(7) The principal shall have power to summon a meeting of the academic board at any time and shall do so at the request of five members of the board.

(8) At every meeting of the board the proceedings of the council meetings which have occurred since the last meeting of the board shall so far as they affect the business of the board be reported to the board.

MISCELLANEOUS PROVISIONS

10. The seal of the College shall not be affixed to any instrument except under the authority of a resolution of the council and in the presence of a member of the council and of the secretary or such other person as the council may appoint for the purpose and that

Seal.

3RD SCH.
—cont.

member of the council and the secretary or other person appointed as aforesaid shall sign every instrument to which the seal of the College is so affixed in their presence.

Notices.

11. For any of the purposes of this Act or the regulations a notice may be served either personally or by sending it by post to the last known address of the person to whom it is sent and a notice sent by post shall be deemed to be served on the day on which it would in the ordinary course of post be delivered and in proving such service it shall be sufficient to prove that the letter containing the notice was properly addressed and posted.

Banking
accounts.

12. The secretary shall forthwith on receipt place all moneys received on behalf of the College in such bank or banks as the council may select to an account in the name of the College. All payments out of such account shall be made by cheques signed by two members of the council and countersigned by the secretary.

Travelling
expenses of
members of
council.

13. The travelling expenses of members of the council in attending the meetings of the council and in making any other journeys at the request or with the approval of the council shall be paid by the College out of funds of the College.

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